

UNITED STATES

INTERNATIONAL TRADE COMMISSION

In the Matter of:

**CERTAIN SEMICONDUCTOR DEVICES,
PRODUCTS CONTAINING SAME,
AND COMPONENTS THEREOF**

) **Investigation No.:**

) **337-TA-1500**

)

)

Pages: 1 - 55

Place: Washington, D.C.

Date: July 8, 2026



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1 UNITED STATES INTERNATIONAL TRADE COMMISSION
2 Washington, D.C.
3 BEFORE THE HONORABLE CLARK S. CHENEY
4 Chief Administrative Law Judge
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7 IN THE MATTER OF: : Investigation No.
8 CERTAIN SEMICONDUCTOR DEVICES, : 337-TA-1500
9 PRODUCTS CONTAINING SAME, AND :
10 COMPONENTS THEREOF :

11 - - - - - x

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13 Remote Hearing
14 International Trade Commission
15 500 E Street, S.W.
16 Washington, D.C.

17 Wednesday, July 8, 2026
18 CASE MANAGEMENT CONFERENCE

19 The remote hearing commenced, pursuant to the notice of
20 the Judge, at 3:00 p.m. Eastern.

21

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23 Reported by: Debra Rose Keenan

24

25

1 APPEARANCES:

2 ** All parties appearing remotely **

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1 P R O C E E D I N G S

2 (3:00 p.m.)

3 CHIEF JUDGE CHENEY: We're on the record now in
4 investigation number 337-TA-1500. This is Certain
5 Semiconductor Devices, Products Containing Same, and
6 Components Thereof. We're meeting this afternoon in a case
7 management conference because a dispute has arisen between
8 the parties relating to discovery.

9 Before we get into that dispute, we will have
10 the parties enter their appearances, beginning with counsel
11 for the Complainant, GlobalFoundries.

12 MR. REISER: Good afternoon, your Honor. This
13 is Bert Reiser with Cleary Gottlieb. We represent
14 Complainant GlobalFoundries. I'm joined by Clement Naples
15 and Charity Lee and I believe Daniel Todd is on the line as
16 well.

17 CHIEF JUDGE CHENEY: Okay. And for the
18 Respondent?

19 MR. SMITH: Thank you, Your Honor. Steven Smith
20 for Cooley for the Tower Respondents. Along with me is
21 Matt Brigham and Matt Ritter.

22 CHIEF JUDGE CHENEY: Welcome to you.

23 MR. SMITH: Thank you, Your Honor.

24 CHIEF JUDGE CHENEY: Anyone else that wishes to
25 enter an appearance that hasn't done so? Hearing no one,

1 let's get to the dispute. I received a letter from the
2 Complainant seeking discovery about certain processes. I
3 received a letter in response from the Respondents Tower
4 and it sounded, in that subsequent letter, that there had
5 been some progress on the dispute since the first letter
6 was sent.

7 So, Mr. Reiser, why don't you tell me where
8 things stand now and outline for me what you think that you
9 need that you haven't received?

10 MR. REISER: Sure, your Honor. Going back to
11 just a couple things that I think you probably will
12 remember from the preliminary conference. The notice of
13 investigation spells out six processes that are within the
14 scope of this investigation.

15 Now, the development that you just referenced,
16 which is mentioned in the letter that Cooley sent, or
17 rather Tower sent this week, is that they gave information
18 in supplementation to interrogatory one and they've
19 promised technical information to be uploaded, excuse me,
20 to the source code file.

21 But those processes that are addressed both in
22 the supplemental answer and we presume in what they are
23 going to produce in terms of technical documents pertain to
24 only two processes. Now, this decision to produce
25 information relating to only two processes comes, we think,

1 from the fact that two of the three products that were
2 charted in the complaint relate to processes that they have
3 now identified as the only processes that they're going to
4 exchange discovery on in this case. So they've limited the
5 discovery that they've produced or are going to produce to
6 the two products, processes rather, specifically charted in
7 the complaint.

8 Now, our view, your Honor, is that that
9 completely ignores the other processes that the notice of
10 investigation specifies are within the scope of the case.

11 Now, in the course of discussions with the other
12 side, and just one small bit of background. And I don't
13 think we talked about it at the preliminary conference.
14 Five of the six patents that are asserted here go to the
15 forming of transistors in the semiconductor chip. And as
16 your Honor is aware from any number of investigations, a
17 transistor is the most basic building block of a
18 semiconductor chip.

19 We did not expect that there would be an awful
20 lot of variation among those processes. Processes for
21 performing transistors is the most basic thing. Is there
22 variation later in the chip? It sounds absolutely
23 credible. But what we're interested in is the formation of
24 the transistors, primarily.

25 So we went into those discussions thinking we

1 would identify a handful of processes that were more or
2 less common. This is something that I think Mr. Smith
3 mentioned himself that, in the main, these processes are
4 all kind of the same. That's what we thought as well.

5 Now we've had discussions with them since and
6 our understanding now is that their view is that there is
7 nothing like a core or basic or fundamental process for
8 making these transistors, but that there's hundreds of
9 variations.

10 Okay. We don't know, your Honor, whether that's
11 true or not. If it's true, and we take them at their word,
12 then we need to see all those processes in order to
13 understand for ourselves whether there are relevant points
14 in common from which we can make a proposal about
15 representiveness, which I think would make all of our lives
16 easier.

17 But in the absence of some help from Tower to
18 identify those commonalities and sort of fundamental
19 elements, we are going to need discovery of all the
20 processes. And it can't be limited just to the two
21 processes that were specifically charted in the complaint.
22 It has to go to all of those that are within the scope of
23 the investigation. So that's point one.

24 The second thing that came up, your Honor, is
25 that there's a product that we charted in the complaint

1 that, so far as we can tell, Tower can't determine whether
2 they manufactured it.

3 They have asked us for assistance in identifying
4 that and we have told them that we think we know. They
5 said in their letter that they specifically asked us about
6 this report, which I will explain to you in a moment. And
7 we have a report. It's not material relied on in writing
8 our complaint but we are aware of it. It's a third-party
9 report. It is an off-the-shelf report. It's available to
10 them. They can buy it, as we bought it. But we bought it
11 subject to the contractual stipulation that we couldn't
12 disseminate it.

13 We told them that in the meet and confer. It is
14 not true that we withheld that information from them. We
15 described the report more than three weeks ago. We said,
16 look, you can go buy it yourselves, the same as we did.

17 They haven't done that, so that they don't know
18 more about this chip is entirely their inaction over the
19 last three, maybe four weeks since the preliminary
20 conference where they could have bought it and haven't.

21 So at the end of all this, your Honor, I think
22 we're not materially advanced over where we were at the
23 preliminary conference. There are six processes identified
24 in the notice of investigation that are within the scope of
25 this case. Tower has decided, based on the two products

1 charted in the complaint, to limit discovery to those
2 processes. And we think that's improper, your Honor, under
3 an awful lot of authority that says that the scope of
4 discovery is as broad as the scope of the investigation,
5 which has been identified, excuse me, by the Commission in
6 the notice.

7 CHIEF JUDGE CHENEY: Any other points?

8 MR. SMITH: Pardon me, your Honor? I'm sorry.

9 CHIEF JUDGE CHENEY: No. I was just asking, Mr.
10 Reiser, are you finished --

11 MR. REISER: Yes, I am, your Honor, initially.
12 Of course, we are prepared to answer any questions your
13 Honor may have.

14 CHIEF JUDGE CHENEY: Okay. So just for the
15 record of this transcript. What are the two products
16 charted in the complaint?

17 MR. REISER: One is a Qorvo CM (sic) product.
18 The other product to which they have limited discovery is a
19 product called the DENSO DNSRR. This third product, your
20 Honor, that they don't know whether they manufacture, is
21 called the Qorvo PAC chip.

22 CHIEF JUDGE CHENEY: Okay. And so you've had
23 some progress on the processes used to make Qorvo CM (sic)
24 and the processes used to make the DENSO DNSRR; is that
25 right?

1 MR. REISER: I think that's right, your Honor.
2 They've given us some identification. They said they're
3 going to give us some documents. We will, of course, look
4 at those very carefully and determine what we can tell from
5 them, but there are large numbers of things not yet
6 addressed.

7 CHIEF JUDGE CHENEY: And which of the six
8 categories in the complaint do those two that you received
9 information fall into?

10 MR. REISER: Based on what Tower has told us,
11 your Honor, the Qorvo QM is manufactured by a power
12 management for RF process. And the DENSO product was
13 manufactured by a SiGe BiCMOS process.

14 CHIEF JUDGE CHENEY: I think maybe I have the
15 initials wrong as to the first product. Is it Qorvo CM or
16 Qorvo QM?

17 MR. REISER: Qorvo QM.

18 CHIEF JUDGE CHENEY: Thank you. Okay. Let me
19 hear from the other side.

20 MR. SMITH: Thank you, your Honor. Mr. Brigham
21 is going to be handling this argument.

22 CHIEF JUDGE CHENEY: Mr. Brigham, you may
23 proceed when you're ready.

24 MR. BRIGHAM: Yes. Our main concern relates to
25 relevance of these other processes. And what we have asked

1 Complainant for is simply some more information about these
2 other processes to enable us to determine the relevance and
3 what types of documents to produce. So if we first start
4 with the PAC22140 chip, what happened is in the complaint
5 --

6 CHIEF JUDGE CHENEY: I'm sorry. So is this the
7 same thing that Mr. Reiser just called the PAC or the Qorvo
8 PAC, or is it something different?

9 MR. BRIGHAM: It's the same but it's important
10 to notice the difference. So what they did -- the
11 importance is that it's a PAC22140 chip. And here's why
12 that's important. In the complaint in their infringement
13 chart they did a cross-section of that chip. And their
14 infringement allegations are based on pointing to
15 structures in that chip. And so naturally it's only
16 relevant if we make that chip.

17 And so what we did was searched for that number.
18 That's a chip made by a third-party. We searched for that
19 number in our system and we just haven't been able to
20 locate it.

21 CHIEF JUDGE CHENEY: When you say it's a chip
22 made by a third-party, you mean that you sell a wafer to a
23 third-party and they package it, is that what I'm to
24 understand?

25 MR. BRIGHAM: Correct. We manufacture wafers,

1 provide those to the chip maker, like Qorvo, and Qorvo
2 packages and sells it.

3 CHIEF JUDGE CHENEY: Okay. So you tried to
4 determine if Tower made the wafer for the Qorvo PAC22140;
5 is that right?

6 MR. BRIGHAM: Correct.

7 CHIEF JUDGE CHENEY: And --

8 MR. BRIGHAM: So if a different foundry made it
9 then it wouldn't be relevant to us. If GlobalFoundries
10 made it, it wouldn't be relevant to us.

11 CHIEF JUDGE CHENEY: Tell me how you go about
12 figuring out if your foundry made the wafer?

13 MR. BRIGHAM: We have customer part numbers that
14 we can search for. We also have other designations that
15 may appear on the chip. And so that's why we asked
16 Complainant, are there any other designations on that chip
17 that would allow us to search our systems. Maybe it's
18 under a difference number. And so that's how we started
19 this dialogue with Complainant about what else led you to
20 believe that we made this chip?

21 And first they pointed to the complaint. And
22 they pointed to an article that's eight years ago that
23 indicated that we made a different chip for Qorvo -- we
24 manufactured a wafer that went in a different Qorvo chip.
25 And we pointed out, well, that's a different number. What

1 led you to believe that we made this chip? And that's when
2 the discussion about a reverse engineering report came up.

3 And all we're asking for is if there's any other
4 product designations, any other information -- if they
5 don't want to provide the full report, that's fine -- if
6 there's any other numbers that they can give us that would
7 allow us to search our systems to see whether we made that
8 chip or not.

9 CHIEF JUDGE CHENEY: Okay.

10 MR. BRIGHAM: So that's the issue on what we'll
11 call the BCD process.

12 CHIEF JUDGE CHENEY: Sorry. Would you repeat
13 that?

14 MR. BRIGHAM: The BCD.

15 CHIEF JUDGE CHENEY: Okay.

16 MR. BRIGHAM: The issues with the other
17 processes is similar but different. They all relate to
18 relevance. But, for example, one of the words on their
19 laundry list of processes is logic. They want everything
20 about logic processes. And we asked them what I believe to
21 be a reasonable question, why do you think logic processes
22 infringe and what patents, what patents do you believe that
23 the logic processes infringe? Because that will enable us
24 to determine what processes at issue are relevant, what
25 parts of the process is relevant. And the complaint

1 doesn't offer any guidance. Logic appears a handful of
2 times but never in connection with any specific patents.

3 And so when we asked that question, they
4 wouldn't provide us any more information.

5 And so overarching with a lot of these processes
6 is just -- all we're seeing is a generic name grabbed from
7 somewhere and saying, give us everything. And at this
8 point we just want to try to engage in a dialogue with them
9 about why do you believe these different processes are
10 relevant and what do you believe they encompass? And
11 that's where we are struggling.

12 So this may be an issue that could benefit from
13 further briefing, but that's where we are with those other
14 processes.

15 CHIEF JUDGE CHENEY: Okay. So you have
16 provided, or Tower has provided information about two
17 processes, the power manufacturing for the RF process and
18 the SiGe BiCMOS process; is that right?

19 MR. BRIGHAM: Power management.

20 CHIEF JUDGE CHENEY: Sorry.

21 MR. BRIGHAM: For RF. And the silicon germanium
22 are SiGe BiCMOS.

23 CHIEF JUDGE CHENEY: Okay.

24 MR. BRIGHAM: We provided a list of about 120 or
25 so process numbers, and then we are rolling out technical

1 production.

2 CHIEF JUDGE CHENEY: Okay. And I presume that
3 you have talked with someone knowledgeable in Tower about
4 these two process lists; is that right?

5 MR. BRIGHAM: Correct.

6 CHIEF JUDGE CHENEY: And do these two processes
7 form transistors in the wafer in different ways? I
8 understand there may be a lot of other differences in the
9 process but do they form the source and the drain in
10 different ways?

11 MR. BRIGHAM: It's possible. But it's --

12 CHIEF JUDGE CHENEY: I'd prefer to know what you
13 know rather than what's possible.

14 MR. BRIGHAM: At its most -- I mean, there are
15 going to be different types of transistors that are formed
16 in different ways.

17 CHIEF JUDGE CHENEY: Okay.

18 MR. BRIGHAM: And so that's why it relates to
19 what is being accused. It goes back to the relevance, so
20 what patents are logic being accused of.

21 CHIEF JUDGE CHENEY: Well, I'm actually focusing
22 on the things that you have already turned over and I'm
23 trying to identify similarities or differences between the
24 things you've already turned over. Can you speak to that?

25 MR. BRIGHAM: There will certainly be

1 similarities, and our goal is to provide enough technical
2 information to GlobalFoundries for them to be able to see
3 those similarities and differences, yes.

4 CHIEF JUDGE CHENEY: Okay. So share with me
5 your understanding of the two processes that have been
6 provided so far. Do those two processes form the
7 transistor in the same way or in different ways?

8 MR. BRIGHAM: I'm sorry, your Honor, I don't
9 know the answer to that with enough specificity.

10 CHIEF JUDGE CHENEY: Okay. When can you have
11 the answer to that?

12 MR. BRIGHAM: We can get the answer to you
13 within a week.

14 CHIEF JUDGE CHENEY: Okay. That seems to be one
15 of the fundamental things that Mr. Reiser was expressing to
16 me, was that he went into this, or his client went into
17 this thinking that the same processes were used to make
18 transistors, fundamentally, in the wafer. And that
19 understanding is what supported the allegation of these six
20 different kinds of chips being accused.

21 And what I'm hearing from you so far, Mr.
22 Brigham, is that you don't know if that's true or not true.

23 MR. BRIGHAM: Correct.

24 CHIEF JUDGE CHENEY: You have investigated and
25 you don't know?

1 MR. BRIGHAM: Correct.

2 CHIEF JUDGE CHENEY: Okay. I would have hoped
3 that you would have had an answer for that at this meeting,
4 because it sounds like you knew that that was the point of
5 dispute.

6 MR. BRIGHAM: Your Honor, no, we did not. It
7 had not been articulated to us in the way that Mr. Reiser
8 just did, that he believed that A, all six patents, or five
9 of the six just relate to a structure of a transistor and
10 B, that they believe that every process did it in the same
11 way. That is not the way that it had been presented to us
12 in the past.

13 CHIEF JUDGE CHENEY: Okay. Let me hear from Mr.
14 Reiser again. Have you expressed to your opponents on the
15 other side what I heard you say just now, and what I tried
16 to re-articulate?

17 MR. REISER: Yes, Your Honor. We believe we
18 have. The entire conversation --

19 CHIEF JUDGE CHENEY: Can you point me to a
20 letter or a summary of a conference that would support
21 that?

22 MR. REISER: As I stand here, I don't, your
23 Honor. But the discussions were all about getting to a
24 position where we could have representative products.
25 That's what this has been about. As we said at the

1 preliminary conference, we don't want to have to prove
2 seven or 800 products, or a thousand products, and we don't
3 think we need to. We think that it is likely, this
4 business, like every other foundry, has a handful of
5 fundamental processes that might have some differences.
6 Okay. We'll figure that out when they give them to us.

7 But in the main, they're more or less the same.
8 Not hundreds. They don't reinvent the transistors with
9 every customer. And that has been the spirit of the
10 discussion since we left the preliminary conference.

11 Now we are looking now for a letter or an email
12 that says that in black and white. But, your Honor, that
13 has been the purpose of these discussions, to get us from
14 hundreds of variations down to a handful that we can manage
15 with our experts and your Honor when we go to trial.

16 CHIEF JUDGE CHENEY: Okay. Let's --

17 MR. REISER: And one other point, your Honor,
18 which I think your Honor understands but I want to be sure
19 we're clear. They haven't produced any technical documents
20 yet. They promised them. They'll be uploaded. We don't
21 know when. They have given us lists of processes,
22 processes that are variations of the two, but they haven't
23 given us technical documentation yet and we are waiting on
24 that to happen.

25 CHIEF JUDGE CHENEY: Okay. Can you articulate

1 for me, Mr. Reiser, the basis for accusing these six
2 different categories in the complaint? The reason I'm
3 asking you this is because Mr. Brigham has said that he's
4 aware of no basis for anything other than the two chips in
5 the complaint, and then there's this third ambiguous chip
6 where apparently it's unclear who made it.

7 So, for example, what is the basis for accusing
8 logic, the logic category?

9 MR. REISER: So again, your Honor, these
10 technologies generally go to the formation of transistors.
11 And we looked at their product offering, and with your
12 Honor's leave, may we upload a bit of information from
13 Tower's website that will show you the offerings that they
14 have, and the ones that we thought were likely to have the
15 kinds of transistors that are claimed here? Can we do
16 that?

17 CHIEF JUDGE CHENEY: Well, I don't think it's
18 particularly necessary. I doubt that Tower is going to
19 dispute the things that are on their website.

20 MR. REISER: Sure. The point is this, your
21 Honor.

22 CHIEF JUDGE CHENEY: So you looked at the
23 offerings on Tower's website --

24 MR. REISER: Right.

25 CHIEF JUDGE CHENEY: Then is there something

1 about what you saw there that led you to believe that, for
2 example, the logic category has the same transistor
3 structure or it was made by the same process as, say, for
4 example, the power management for the RF category?

5 MR. REISER: It's an understanding, your Honor,
6 that the transistors that are claimed in these patents are
7 the kind that are used in these various processes. And the
8 processes are identified in their website as processes that
9 they offer at various node sizes, one of which is called
10 logic.

11 CHIEF JUDGE CHENEY: And so I understand that
12 you're saying that the patents describe uses of the
13 invention. Is there a particular technological reason that
14 you might suspect that categories within or without the
15 scope of the patent -- for example, power transistors are
16 generally built differently than processing transistors.
17 Is there some technological difference or similarity that
18 you are relying upon in formulating the complaint?

19 MR. REISER: Well, your Honor, so four of the
20 patents at issue deal very specifically with contacts
21 within a transistor. All transistors have contacts. And
22 we understand that a logic chip would have the kinds of
23 transistors that have the kinds of contacts that we're
24 talking about in this case.

25 It's a bit of an inference, for sure, on our

1 part. We didn't --

2 MR. NAPLES: I mean, maybe -- let me add. Your
3 Honor, sometimes there's like chips that are memory chips,
4 right, where you're kind of storing data. And there are
5 logic chips, which are like computational type chips. So
6 all of the chips that we have seen are like that. That's
7 why we identified the logic category.

8 CHIEF JUDGE CHENEY: When you say are like that.
9 What is the "that"?

10 MR. NAPLES: Like the chips that do computation.
11 They're not memory. This isn't RAM or SSD. These are
12 like, what Mr. Reiser is describing is the type of
13 transistors that we see in the, in the chips that relate to
14 Qorvo QM, the DENSO DDSR, those are all the kind of
15 transistors that are in logic chips.

16 Now so that's why -- what Mr. Reiser was going
17 to show you on the website, I believe, was there is a
18 category that they have for logic. Now some of these chips
19 may be in it. Some may be not. But from what we have
20 seen, the way they manufacture transistors for logic chips
21 infringe these patents. And that's why we put in the
22 complaint -- that's why the notice of investigation covers
23 logic chips.

24 CHIEF JUDGE CHENEY: Okay.

25 MR. NAPLES: One more thing, your Honor. We

1 don't know, because they haven't told us, what processes
2 they have that fall under that logic category.

3 CHIEF JUDGE CHENEY: Okay. Why is it that you
4 don't accuse memory chips? Technically.

5 MR. NAPLES: We just haven't. We couldn't find
6 any memory chips from -- I don't know if Tower even makes
7 memory, I think that more, like, other companies make
8 memory. But these are not memory chips. If they made
9 memory chips and we found some that infringe, I suppose we
10 would have, we could have done something with it. But
11 that's just not the type of chips that we've found to be
12 infringing these patents, as far as we know.

13 CHIEF JUDGE CHENEY: So it sounds like you are
14 just accusing everything that Tower makes that has a
15 transistor of infringement; is that right?

16 MR. NAPLES: No, Your Honor. So what we did was
17 --

18 CHIEF JUDGE CHENEY: Help me understand. Can
19 you help me understand the --

20 MR. NAPLES: Well, so, for instance, your Honor,
21 I'll give you an example. Tower makes a whole bunch of
22 different chips that do a bunch of different things.
23 They've got chips that do silicon photonics, for instance.
24 So we have not accused anything in this case related to
25 silicon photonics.

1 When we tore down the chips that we tore down,
2 they were part of a, what's called a SiGe process, an RF
3 process, a BCD process, and a power management process.
4 The same six processes that Mr. Reiser identified for you.
5 That was all --

6 CHIEF JUDGE CHENEY: I'm sorry. You just listed
7 four and then you called it six.

8 MR. NAPLES: Because Mr. Reiser has the six in
9 front of him, and I --

10 MR. REISER: Your Honor, may I give you those
11 categories?

12 CHIEF JUDGE CHENEY: Sure, I was just trying to
13 understand the missed numbers.

14 MR. REISER: Understood, you Honor. The notice
15 of investigation identifies the RF processes, power
16 management processes, BCD processes -- am I getting ahead
17 of your Honor?

18 CHIEF JUDGE CHENEY: No, you're fine.

19 MR. REISER: Okay. Logic processes, BiCMOS
20 processes and SiGe, silicon germanium. SiGe processes.
21 Those of the six.

22 CHIEF JUDGE CHENEY: I didn't mean to interrupt
23 you, Mr. Naples. Did you need to go on?

24 MR. NAPLES: No, your Honor. I just wanted to
25 clarify kind of how we got to the list we got to, and how

1 frankly we didn't -- we're not accusing every chip or
2 process that they make.

3 CHIEF JUDGE CHENEY: So you mentioned that
4 you're not accusing chips that do photonics. Did I catch
5 something about that right?

6 MR. NAPLES: Yes, your Honor. I know that they
7 manufacture silicon photonics chips. We do not accuse any
8 silicon photonic chips in this case of infringing any
9 patents.

10 CHIEF JUDGE CHENEY: Is there anything else --
11 (Simultaneous speaking.)

12 MR. NAPLES: At this point -- pardon me?

13 CHIEF JUDGE CHENEY: Is there anything else that
14 you can identify that you are not accusing?

15 MR. NAPLES: I'm not aware, your Honor, because
16 I don't know their whole portfolio. I just know that
17 that's -- I know they make silicon photonic chips because I
18 happen to know that, but otherwise I don't know their whole
19 portfolio.

20 CHIEF JUDGE CHENEY: Okay. So other than
21 silicon photonics which, I apologize, I don't know if that
22 involves transistors or not. Does it?

23 MR. NAPLES: That's a good question, your Honor.
24 As I sit here today, I'm not sure either.

25 CHIEF JUDGE CHENEY: Okay.

1 MR. NAPLES: I guess it would depend on the
2 patent.

3 CHIEF JUDGE CHENEY: I mean, none of what we are
4 talking about depends on the patent. It depends on what is
5 actually done in the lab.

6 MR. NAPLES: Yes. Yes. I just don't know the
7 answer to that question. But I do know that we have not
8 accused any silicon photonics patents -- products.

9 CHIEF JUDGE CHENEY: But you're pretty much
10 accusing everything that they make as a transistor, right?

11 MR. NAPLES: No. We're only accusing those six
12 processes. I don't know if they have other processes, your
13 Honor. That's the only distinction I'm making. That is
14 it. I'm not representing that, that may cover a lot of
15 their products or processes, but it is limited to those
16 processes that we have identified.

17 CHIEF JUDGE CHENEY: If you discovered an eighth
18 process that had transistors, wouldn't you accuse it of
19 infringement?

20 MR. NAPLES: It would depend on how the
21 transistor was manufactured.

22 CHIEF JUDGE CHENEY: But you would presume, I
23 think, that it's manufactured in the same way as these six
24 processes --

25 MR. NAPLES: I would not presume that, your

1 Honor. I would have to look at the product and figure out
2 if this product infringes any of these patents because
3 that's what we did to get to these processes. We didn't
4 tear down a chip and say, okay, all the transistors are
5 like this. That is not what we did. We tore down --

6 (Simultaneous speaking.)

7 MR. NAPLES: Go ahead.

8 CHIEF JUDGE CHENEY: Sorry to interrupt. Please
9 continue.

10 MR. NAPLES: No, no. I want to make sure I'm
11 answering your questions as they come, your Honor.

12 CHIEF JUDGE CHENEY: So I understand from your
13 answer then that you tore down a chip for each of the six
14 processes; is that right?

15 MR. NAPLES: Yes. I will -- I just want to make
16 sure I'm being accurate. I believe that -- let me just
17 double check -- that the, for instance, the power
18 management chips are made using a BCD process.

19 CHIEF JUDGE CHENEY: So why are you
20 distinguishing between those two?

21 MR. NAPLES: Because what we've seen is they
22 manufacture power management chips that infringe the
23 patents and they are manufacturing those chips using a BCD
24 process that infringes the patents.

25 So we believe that -- this is an example of

1 where we believe all of the transistors will be the same,
2 for instance, as on the BCD process.

3 CHIEF JUDGE CHENEY: Tell me more about what you
4 mean by BCD process.

5 MR. NAPLES: It is just a particular process
6 used to manufacture chips. It's -- not back channel -- I'm
7 confusing it with another process. I'll remember what the
8 BCD transfer stands for at some point and I'll tell your
9 Honor, but it's a particular way of manufacturing chips.

10 CHIEF JUDGE CHENEY: Okay. So one of the things
11 that struck me about this list of six is that the
12 Complainant sometimes refers to them as processes but they
13 are not strictly different processes. It seems like they
14 are a mixture of processes and categories of apparatus and
15 categories of materials.

16 MR. NAPLES: Yes. I think that is fair, your
17 Honor.

18 CHIEF JUDGE CHENEY: And so if we were to draw a
19 Venn diagram of these six things there would be overlap,
20 right?

21 MR. NAPLES: Absolutely.

22 CHIEF JUDGE CHENEY: So, for example, there
23 might be logic chips that are made using a BCD process out
24 of SiGe materials, possibly.

25 MR. NAPLES: Yeah, I mean, for purposes of a

1 hypothetical. I don't know if that's technical feasible.

2 CHIEF JUDGE CHENEY: I don't know either.

3 MR. NAPLES: Yeah, there's definitely the kind
4 of overlap you're talking about.

5 CHIEF JUDGE CHENEY: Okay. And you drew these
6 six labels from what I think everyone on this call would
7 agree are marketing materials, right?

8 MR. NAPLES: No, your Honor.

9 CHIEF JUDGE CHENEY: They're not?

10 MR. NAPLES: No, no. Now I understand your
11 question. Yes. Based on the type of chip, the type of
12 process, and marketing materials that power -- Tower uses,
13 yes. That is how we did this.

14 Now, but, for instance, like BCD, not really.
15 Right? We just knew that was a BCD process based on the
16 teardown. We had to go figure out that it was a power
17 management chip from Tower's publically available
18 materials, but we didn't need their publically available
19 materials to tell us it was a BCD chip. In fact, we had to
20 go tear it down to figure it out.

21 CHIEF JUDGE CHENEY: I see. So there is not a
22 category on the Tower website that says we make wafers
23 using the BCD process. If you want a BCD processed wafer,
24 come talk to us?

25 MR. NAPLES: I would have to check, your Honor.

1 CHIEF JUDGE CHENEY: Okay.

2 MR. REISER: Your Honor, this is Burt Reiser.
3 The answer to that appears to be yes. And this is the
4 document that we were prepared to show your Honor. It
5 shows a matrix that shows various node sizes and processes
6 that they made within those node sizes. BCD is one of
7 those that's offered in three node sizes.

8 CHIEF JUDGE CHENEY: Okay. Okay. I am slowly
9 starting to understand what is going on here.

10 Returning to you, Mr. Naples. Tell me what --
11 how many chips were broken down to figure out the
12 allegations of the complaint?

13 MR. NAPLES: Three.

14 CHIEF JUDGE CHENEY: Okay. And so was one of
15 those a logic chip?

16 MR. NAPLES: Yes.

17 CHIEF JUDGE CHENEY: Which one?

18 MR. NAPLES: I don't know if any of them would
19 fairly be characterized as not being logic. But we can --
20 I can check.

21 CHIEF JUDGE CHENEY: When I think of logic I
22 think of a NanGate, something like that. Is that what you
23 think of?

24 MR. NAPLES: I think that maybe that's -- you've
25 got to figure out like what they're referring to as logic.

1 But from what we have seen, logic chips, like the ones that
2 we tore down, are what we would consider logic. They, I
3 think part of the discussion was, what do you mean by
4 logic, from Tower. We said, well, you advertise logic,
5 what does that mean to you?

6 CHIEF JUDGE CHENEY: Okay. So you think that
7 one of the three chips that we've identified on this
8 conference is a logic chip?

9 MR. NAPLES: Yes.

10 CHIEF JUDGE CHENEY: Do you think all three of
11 them are?

12 MR. NAPLES: I would have to go back and check.
13 I do know that the DENSO chip, your Honor, that we tore
14 down, we would -- I think that could definitely be fairly
15 characterized as a logic chip. It's definitely one that
16 jumps to mind.

17 CHIEF JUDGE CHENEY: Can you just give me a
18 10,000 foot overview of what the DENSO chip is and what it
19 does, who buys it, and what it's used for?

20 MR. NAPLES: Yes. That is a -- so DENSO, I
21 believe, goes into cars, Toyota cars. It's in our
22 complaint. And that is a radiofrequency chip. That is an
23 example of, from our perspective, a logic chip.

24 CHIEF JUDGE CHENEY: But also an example of an
25 RF chip, which is another one of your categories?

1 MR. NAPLES: Correct.

2 CHIEF JUDGE CHENEY: Okay. Which of the three
3 chips that you tore down were RF chips?

4 MR. NAPLES: Let me -- Mr. Reiser my have a list
5 handy. But I can certainly get that for you. So the Qorvo
6 QM and the DENSO are RF chips. I'll try to pull up the
7 rest.

8 MR. REISER: The Qorvo QM is an RF chip.

9 MR. NAPLES: Yeah.

10 CHIEF JUDGE CHENEY: Okay. Mr. Reiser, do you
11 agree with your colleague that the DENSO DNSRR is also an
12 RF chip?

13 MR. REISER: Your Honor, I don't know the answer
14 to that.

15 CHIEF JUDGE CHENEY: Okay.

16 MR. REISER: Actually, it is, your Honor, an RF
17 chip.

18 CHIEF JUDGE CHENEY: Okay. Which of the chips
19 are power management chips? It sounds like Qorvo QM. Any
20 others?

21 MR. NAPLES: The Qorvo PAC.

22 CHIEF JUDGE CHENEY: Okay. Which of the three
23 chips were made using BCD?

24 MR. NAPLES: The Qorvo BCD was made using -- a
25 Qorvo PAC was made using BCD. And if you give us a second

1 we'll get the rest.

2 I think that may be the only BCD one, your
3 Honor.

4 CHIEF JUDGE CHENEY: Qorvo PAC, which we're not
5 sure if Tower made, right?

6 MR. NAPLES: Well, what Tower has told us is
7 that, I think they said they're not sure if they
8 manufacture it. They're not sure if one of their processes
9 was used, I guess. We haven't really gotten a clean answer
10 from them on that.

11 CHIEF JUDGE CHENEY: Okay. But your best
12 evidence that Tower made this is an article from eight
13 years ago that Tower made a different chip for Qorvo?

14 MR. NAPLES: Our evidence for this is that we
15 tore down a Qorvo PAC and the article indicates that the
16 work produced wafers for Qorvo and that is what we relied
17 on in the complaint. On top of that --

18 CHIEF JUDGE CHENEY: Well, I know you're trying
19 -- I know I posed the question in a way that is pejorative
20 but I would actually like the answer to it.

21 MR. NAPLES: Yeah, yeah, yeah. Yes, your Honor.
22 We relied on a press release talking about Tower
23 manufacturing Qorvo chips. In the area --

24 (Simultaneous speaking.)

25 CHIEF JUDGE CHENEY: -- that's right?

1 MR. NAPLES: Yeah, I don't want to -- like I
2 said, I will --

3 CHIEF JUDGE CHENEY: -- I want you to tell me
4 right now.

5 MR. NAPLES: Yeah, yeah, yeah. That's what I'm
6 saying. I don't want to, I don't want to minimize it but I
7 believe that's what we relied on, your Honor. Yes.

8 CHIEF JUDGE CHENEY: Okay. That is weak. That
9 is very, very weak.

10 MR. NAPLES: The other thing we have, your
11 Honor, which we provided to Tower was a teardown report.
12 That teardown report was prepared by a company called Yole.
13 Yole does this for a living. They're like Chipworks or
14 TechInsights. And in that report it shows a Qorvo chip
15 manufactured, as far as we can tell, using the same
16 process, and it's identified as a Tower manufactured chip.

17 CHIEF JUDGE CHENEY: So Yole identified it as a
18 Tower manufactured chip?

19 MR. NAPLES: Yes, your Honor.

20 CHIEF JUDGE CHENEY: And which chip number did
21 Yole identify as having a Tower manufactured wafer?

22 MR. NAPLES: I would have to get that for you.

23 CHIEF JUDGE CHENEY: But I mean --

24 MR. NAPLES: But the process is the same.

25 CHIEF JUDGE CHENEY: I'm sorry --

1 MR. NAPLES: Someone just told me. The
2 PAC22140, and that's the same chip number we identified in
3 our complaint.

4 CHIEF JUDGE CHENEY: Okay. Then that is the
5 same chip number that Mr. Brigham talked about just a
6 moment ago. So I just want to follow up with you, Mr.
7 Naples.

8 You said that you provided the Yole report to
9 the Respondents. Did I understand that correctly?

10 MR. NAPLES: I think what we did, your Honor.
11 Mr. Reiser had the actual conversation with them because
12 there were some restrictions on us providing it to them,
13 but go ahead.

14 CHIEF JUDGE CHENEY: Okay. Mr. Reiser?

15 MR. REISER: Your Honor, I spoke about this
16 earlier. We have not physically given them a physical
17 copy. We identified the report by name, the people who did
18 it, we told them we purchased it. It's an off-the-shelf
19 report. It's available to them as well. But the
20 restrictions under which we are operating is that we can't
21 disseminate to others.

22 CHIEF JUDGE CHENEY: Okay. But you can disclose
23 its contents?

24 MR. NAPLES: And we have.

25 CHIEF JUDGE CHENEY: I'm asking for you to make

1 an affirmative representation that you're authorized to
2 disclose the contents of the Yole report; is that correct?

3 MR. NAPLES: Yes, Your Honor.

4 MR. REISER: Yes, Your Honor. We said what the
5 clip is that the report deals with, and it's the PAC2214
6 (sic).

7 CHIEF JUDGE CHENEY: I'm sorry, that's a
8 different number. I have 22140. Is that --

9 MR. REISER: That is correct, your Honor.
10 PAC22140. Yes.

11 CHIEF JUDGE CHENEY: Okay. So the report says
12 that PAC22140 was made by Tower and you're authorized to
13 disclose that. You have disclosed that to the other side;
14 is that right?

15 MR. NAPLES: Yes.

16 CHIEF JUDGE CHENEY: Okay. Turning to ticking
17 down my list. So that's your basis for saying that the BCD
18 process is used by Tower, right?

19 MR. NAPLES: Yes, your Honor.

20 CHIEF JUDGE CHENEY: Okay. And then which of
21 the three chips was a BiCMOS chip?

22 MR. NAPLES: DENSO is also BiCMOS.

23 CHIEF JUDGE CHENEY: Any of the other two?

24 MR. NAPLES: No.

25 CHIEF JUDGE CHENEY: Okay. And then which of

1 the three chips are SiGe?

2 MR. NAPLES: The DENSO is also SiGe.

3 CHIEF JUDGE CHENEY: Any of the other two?

4 MR. NAPLES: I don't believe so.

5 CHIEF JUDGE CHENEY: Okay. You can let me know
6 if you --

7 MR. NAPLES: Yes, I'll let you know. Yes.

8 CHIEF JUDGE CHENEY: So let me return to Mr.
9 Brigham. Okay. Mr. Brigham, I have tried to help you
10 understand the relevance of the processes that have been
11 accused. Do you have a different understanding of that
12 now?

13 MR. BRIGHAM: Yes, your Honor. Thank you for
14 getting that information. It is -- a lot of that is new
15 information and different than what was in the complaint.
16 In the complaint, specific processes are listed under
17 certain patents. And I'm happy to point to parts of the
18 complaint. This information is much broader, but also
19 lacks any connection to which patent.

20 CHIEF JUDGE CHENEY: Okay. Well --

21 MR. BRIGHAM: And there were a couple others on
22 the reverse engineering report from Yole.

23 CHIEF JUDGE CHENEY: Yes.

24 MR. BRIGHAM: I guess my request is, we looked
25 for a report from Yole and have not been able to find

1 anything. So if they cannot produce it to us, at a
2 minimum, we request a link or an identification, something
3 so that we can do some type of sanity check that what they
4 say is in that report.

5 CHIEF JUDGE CHENEY: Okay. Does the Complainant
6 have that at your fingertips? I presume that this was a
7 menu of things that you could buy from Yole online. And
8 maybe you could pull that up on the Web and share it on
9 your screen right now and we could resolve that.

10 MR. NAPLES: Sure. I don't know if we can pull
11 it up on the screen, but we can definitely help.

12 CHIEF JUDGE CHENEY: Okay. We're not going to
13 pause while your team is working on that. We are going to
14 keep going but, please, have your team work on that.

15 MR. NAPLES: Yes.

16 CHIEF JUDGE CHENEY: I have no reason to believe
17 that the Complainants are inaccurately representing that
18 the report says that this chip was made by -- this chip
19 was -- had a wafer in it that was made by Tower.

20 MR. BRIGHAM: Your Honor, I don't want to infer
21 that either, to be clear.

22 CHIEF JUDGE CHENEY: Sure.

23 MR. BRIGHAM: This one really relates to, we're
24 just trying to find some other numbers to help us search
25 our systems, so we're not second guessing or anything like

1 that.

2 CHIEF JUDGE CHENEY: Okay.

3 MR. BRIGHAM: It's really just, if something in
4 that report can lead us to an investigation then this may
5 help all of us.

6 CHIEF JUDGE CHENEY: Okay. So here is --

7 MR. NAPLES: So, your Honor, I have a -- let me
8 see if I can share this. Hang on. Okay. I can give you
9 the report number. I don't know if I can share this on the
10 screen here.

11 CHIEF JUDGE CHENEY: You can read the report
12 number into the record, if that's easier.

13 MR. NAPLES: Yeah. It is SPR25920. Can you see
14 my screen, your Honor?

15 CHIEF JUDGE CHENEY: I do.

16 MR. NAPLES: So this is just the -- I'll try to
17 get the whole report. I mean, I don't want to violate any,
18 any of the agreements that we have to not share this. But
19 it's -- this is the Yole BCD technology process comparison,
20 just for the record, 2025. The number at the bottom is
21 SPR25920.

22 CHIEF JUDGE CHENEY: Okay. Thank you. So if we
23 were to work through these things one at a time, it would
24 seem that's an easy low hanging fruit to start with would
25 be with the SiGe processes, because not all transistors are

1 made with SiGe. And it would seem -- it seems, and the
2 Complainant can tell me if I'm wrong, that Complainant is
3 accusing every single chip that Tower makes using SiGe,
4 right?

5 MR. NAPLES: That's right, your Honor.

6 CHIEF JUDGE CHENEY: So let me hear from Mr.
7 Brigham about any confusion about the relevance of this
8 category of products and why we haven't turned over the
9 information?

10 MR. BRIGHAM: Your Honor, under the category of
11 SiGe, and stepping back, I think we can all acknowledge
12 that there is -- there's kind of some crosstalk about
13 marketing and technical terms and blending of names that,
14 frankly, I think more discussion between us and Complainant
15 would be beneficial.

16 CHIEF JUDGE CHENEY: I gave you a chance to do
17 that part and it didn't work. So we are going to do it
18 now.

19 MR. BRIGHAM: On BiCMOS, the SiGe BiCMOS, we
20 have produced information. That is the SBC1835 processes.
21 That's part of the 120 process names. And we will be
22 rolling out example process flows of those after review,
23 probably starting Monday.

24 CHIEF JUDGE CHENEY: Sorry. You are starting --

25 MR. BRIGHAM: On Monday.

1 CHIEF JUDGE CHENEY: On Monday. Okay. So that
2 covers two of the six categories; is that right?

3 MR. BRIGHAM: Yeah, they cross over. But, yes.
4 Those two are not the ones that are in dispute.

5 CHIEF JUDGE CHENEY: Okay.

6 MR. NAPLES: I'm sorry. Just so I don't
7 interrupt later, your Honor. I just wanted to confirm what
8 Tower is saying they're producing. They're producing their
9 SiGe processes; is that correct?

10 CHIEF JUDGE CHENEY: Sorry --

11 (Simultaneous speaking.)

12 CHIEF JUDGE CHENEY: So I know it's a little
13 awkward to go through me, but it actually saves a lot of
14 headache to ask me to ask the other side the question. So
15 Mr. Naples, you want to know if Tower is producing all of
16 their SiGe processes; is that right, Mr. Naples?

17 MR. NAPLES: Yes, your Honor.

18 CHIEF JUDGE CHENEY: And your answer, Mr.
19 Brigham?

20 MR. BRIGHAM: I will need to verify. My
21 understanding is that it is not every SiGe. It is the one
22 that is SiGe BiCMOS.

23 CHIEF JUDGE CHENEY: Okay. And is there some
24 logic behind narrowing the response to only SiGe BiCMOS?

25 MR. BRIGHAM: Because that is the process --

1 that is what the DENSO chip that they reversed engineered
2 and accused and have tied to one of the patents maybe? No,
3 three, three of the patents. It is made with the SiGe
4 BiCMOS process. A very specific one.

5 And so what we did, the list that we provided
6 branched out from that and provided a list of a
7 hundred-something different variations of that.

8 Now not all of those variations are going to be
9 material to this case. I don't want to leave that
10 impression. I think there was an earlier suggestion that
11 there's going to be a hundred different transistors. I
12 don't want to leave that impression.

13 We share a goal of finding a representative
14 product with them. And so that's why we provided this list
15 to show that there's a hundred different, we'll call them
16 process variations, of SiGe BiCMOS.

17 CHIEF JUDGE CHENEY: And when you say that they
18 won't all be relevant to this investigation, what do you
19 mean?

20 MR. BRIGHAM: Let's say we have a process that's
21 got, for simplicity, a thousand steps. Just for
22 simplicity, steps 900 through 1,000 may change and be given
23 a new process number, but those steps may not have anything
24 to do with the patents at issue.

25 And that's the dialogue that we want to have

1 with Complainants about, okay, here's some process flows
2 that -- providing hundreds of process flows is not going to
3 benefit anyone. Here's, here's some process flows. Let's
4 have a dialogue about which of these steps, which of these
5 portions are relevant to the patent that you believe is
6 accused and then let's branch out from there so that we can
7 have a representative product discussion.

8 CHIEF JUDGE CHENEY: Yeah. And that would have
9 been more productive if you could have told me about the
10 similarities or differences between the two categories of
11 processes that you have produced, but you didn't come
12 prepared to do that today.

13 MR. BRIGHAM: I understand. I apologize.

14 CHIEF JUDGE CHENEY: Well, it's not acceptable.
15 That's why we are all devoting time today to this.

16 So it is frustrating, frankly, for you to come
17 here and say we want to have a dialogue about what is
18 representative when you didn't arrive ready to have a
19 dialogue about what is representative. And that makes me
20 think that you are stonewalling.

21 MR. BRIGHAM: Your Honor, the issue that we face
22 is what patents are each one of these accused of.

23 CHIEF JUDGE CHENEY: Put the patents aside. The
24 Complainant has demonstrated that they have torn down
25 something related to each of these six categories and the

1 Commission voted to institute an investigation on that
2 basis.

3 You say that you want to have a dialogue about
4 representative products and then you arrive not prepared to
5 have that dialogue about only two of the categories, let
6 alone the other four. You can't tell me how those two
7 categories that you have produced or have promised to
8 produce and have not yet produced, are similar or
9 dissimilar.

10 And so when you come here and say, well, we'd
11 like to have a dialogue, it rings hollow to me. And so now
12 I wonder if it's motion to compel time. Is that where we
13 are?

14 MR. BRIGHAM: I don't believe so, your Honor.

15 CHIEF JUDGE CHENEY: Then how are we going to
16 avoid that?

17 MR. BRIGHAM: By them looking at the information
18 that we are providing --

19 CHIEF JUDGE CHENEY: What about you looking at
20 the information that you provided and telling them how it
21 is similar or dissimilar?

22 MR. BRIGHAM: Okay.

23 CHIEF JUDGE CHENEY: When are you going to do
24 that?

25 MR. BRIGHAM: We can do that and talk with them

1 about that in the next week.

2 CHIEF JUDGE CHENEY: Okay. So when are they
3 going to have the materials so that you can have an
4 intelligent conversation about this?

5 MR. BRIGHAM: The review -- we just had the
6 review computer -- the supplemental protective order was
7 entered and the new computer will be available starting
8 Monday.

9 CHIEF JUDGE CHENEY: And so they are going to
10 have these two processes; the power management for RF and
11 the SiGe BiCMOS processes?

12 MR. BRIGHAM: Correct.

13 CHIEF JUDGE CHENEY: Is that right, by Monday?

14 MR. BRIGHAM: Right.

15 CHIEF JUDGE CHENEY: Let me ask Mr. Reiser, how
16 long do you need to look at what has been provided so that
17 you can have an intelligent conversation with Tower?

18 MR. REISER: Your Honor, it depends, I think on
19 the volume of materials we get. So I can't say for sure.
20 I'm going to ask Mr. Naples. I think we can probably do it
21 in a week. I hate to have this conversation in front of
22 your Honor, but I think that's doable.

23 Mr. Naples, do you agree?

24 MR. NAPLES: Yeah. We'll have somebody at that
25 computer immediately, your Honor.

1 CHIEF JUDGE CHENEY: Okay.

2 MR. NAPLES: If there is anything that says
3 to me this isn't going to take a week, we will let everyone
4 know as soon as possible.

5 CHIEF JUDGE CHENEY: Okay. So no later than
6 Monday, July 20th, the parties are going to be prepared to
7 talk about the processes that Tower's produced. Is
8 everyone on the same page?

9 MR. BRIGHAM: Yes, Your Honor.

10 MR. NAPLES: Yes, Your Honor.

11 CHIEF JUDGE CHENEY: Okay. Let the record show
12 that both sides agree to that.

13 Now it seems to me that Tower is going to need
14 to put some effort into putting some things on that
15 computer that relate to each of the other six categories.
16 And to the extent that there's some confusion on Tower's
17 part about those categories and how broad they are -- they
18 are very broad. It seems to me that it is pretty much
19 everything with a transistor not silicon photonics, right?
20 I haven't heard --

21 MR. NAPLES: Not --

22 (Simultaneous speaking.)

23 CHIEF JUDGE CHENEY: I'm sorry?

24 MR. NAPLES: I took a quick look. They also
25 make image sensors and we're not accusing any image

1 sensors.

2 CHIEF JUDGE CHENEY: Okay. Now it may very well
3 be, Tower, that there is lots of overlap between something
4 that your marketing people have called logic chips and
5 BiCMOS chips. I would not be at all surprised if there is
6 a ton of overlap of those terms. But it seems to me like
7 this is a -- this investigation, as it's been defined by
8 the commission, is really broad. And if you had come here
9 today and said, look, we've given them information that
10 shows that transistors are made in different ways, and
11 these patents are not relevant to the waterfront then we
12 would have a different conversation, but you didn't come
13 here with that information to help me narrow the case.

14 So maybe that information will be more
15 forthcoming in your meet and confer that is going to happen
16 on July 20th, if not sooner.

17 So just to be clear, I expect Tower to continue
18 to provide information about processes in these six
19 categories to the Complainant. And I don't want to get in
20 the middle of a million different processes. You're not
21 going to find it helpful for me to oversee those
22 discussions. But you didn't come here with something that
23 would allow me to help you narrow the case, and so it's
24 just going to be broad for now until someone shows me
25 information that leads me to believe that the case is about

1 something narrower.

2 Mr. Reiser, if you are able to look at these
3 things on the process computer on Monday the 13th, and I
4 assume that there's going to be rolling supplementation of
5 the things on that computer, and if you're able to have a
6 meet and confer with the other side about those processes
7 on July 20th, that will resolve your letter. Or do you
8 need more from me?

9 MR. REISER: At the moment, your Honor, no. And
10 one point of clarification. I apologize for this. I may
11 have misheard, but I thought I heard Mr. Brigham say that
12 they were going to provide not process documents, but
13 exemplars. And if that is correct, if I heard that
14 correctly, I would want to know what that means in advance
15 of the 20th, or the 13th, rather.

16 CHIEF JUDGE CHENEY: Mr. Brigham, can you
17 clarify, please?

18 MR. BRIGHAM: What will go on the review
19 computer is the process flows that the client calls the
20 process flows, which are the step-by-step process for the
21 accused processes, the TPS 65DMD 5000008. And the
22 SBC18QTEZ, which is the SiGe BiCMOS process. Those will be
23 on there in a minimum. And as your Honor said, we will
24 continue to roll out additional examples of those.

25 CHIEF JUDGE CHENEY: Mr. Reiser, do you have

1 followup?

2 MR. REISER: Yes. What I'm hoping is that we
3 are headed toward processes for all 120 or 123 processes
4 identified in the supplemental interrogatory, at least at
5 the moment.

6 CHIEF JUDGE CHENEY: Mr. Brigham, is there some
7 reason -- is that what the plan is, to get all of the
8 processes into the review computer?

9 MR. BRIGHAM: No. The process that we discussed
10 with Complainant yesterday, Mr. Reiser wasn't on the call,
11 but what we discussed with his teammate, or his team, was
12 providing enough for working -- we will be happy to work
13 with them on the number, of providing them enough so
14 that -- for them to see the similarities and differences,
15 rather than 120 of them, which will not be proportional to
16 the need, to their need. But we're open to a dialogue with
17 them about the number or clarifications.

18 CHIEF JUDGE CHENEY: Mr. Reiser, did you have
19 something else you wanted to ask?

20 MR. REISER: Yes, your Honor. I think that is a
21 reasonable conversation to have. There are any number of
22 kinds of documents. What we've told them in discussion, as
23 we said in our letter to you, is we want process flows,
24 process recipes, and step-by-step depictions of the process
25 steps.

1 I'm sure there are many other kinds of documents
2 that they have. For the moment to try to get to the place
3 where we have representative products and processes, those
4 are the documents that we are interested in seeing.

5 CHIEF JUDGE CHENEY: Okay. So some of those
6 things -- let me just ask Mr. Brigham. If I remember
7 right, from our previous conversations and the things I
8 read in the record of this investigation, one of the things
9 that Mr. Reiser is looking for is some pictures that might
10 have been in training materials for people that run the
11 processes or design the processes.

12 And I am unclear personally, do those go on the
13 review computer or are they things that you would just
14 Bates stamp and produce in the normal course of discovery?

15 MR. BRIGHAM: We are in active conversations
16 with our client about that. But I think, I think we would
17 end up producing those. But we're talking about
18 confidentiality with our client on those. But I believe
19 those would just be produced with the Bates number.

20 And I didn't mean to imply that those process
21 flows that would go on the computer are the only documents
22 that we plan on producing. We are continuing to collect
23 and will produce documents beyond those process flows that
24 go on, including, we're searching for, we call them the
25 cartoons. We are searching and will produce them.

1 CHIEF JUDGE CHENEY: Okay. Great. So in my
2 experience in other semiconductor cases and wafer
3 manufacturing cases, what are being called process flow
4 documents that I'm familiar with, say things like, expose
5 the wafer to ammonia for point 5 seconds. I see some
6 people nodding their heads on the call.

7 Mr. Reiser, is that what you mean by a process
8 flow document?

9 MR. NAPLES: I think I may --

10 MR. REISER: Go ahead, Clem.

11 MR. NAPLES: So, your Honor, I want to make sure
12 we're talking about the same thing. There are things
13 called recipes. Right? Sometimes a recipe will be very
14 specific about what you just said, expose the wafer to
15 ammonia at this temperature for this amount of time.

16 The process flows, training materials, cartoon
17 images, those are things that might have a picture of a
18 wafer that's been cut in half or sliced down the middle and
19 they will analyze the wafer. It will tell you kind of,
20 this happens in this step, and then the next step, and it
21 will show the wafer through each step.

22 The recipes are different from those. The
23 process flows with the cartoon images, those are typically
24 things that are Bates stamped. For instance,
25 GlobalFoundries is also producing those for its domestic

1 industry products and we're just going to Bates stamp those
2 and produce those to Tower.

3 CHIEF JUDGE CHENEY: Okay.

4 MR. NAPLES: So different FADs use different
5 terms but everyone seems to understand when we say cartoon
6 images.

7 CHIEF JUDGE CHENEY: Okay. So the reason I ask
8 this question is because Mr. Brigham has brought up the
9 needs of the investigation. And maybe I'm not
10 understanding something correctly. But for these recipe
11 documents that say things like, expose the wafer to ammonia
12 at a certain degree for a certain amount of time, those
13 documents are not lengthy.

14 MR. NAPLES: A lot of them aren't.

15 CHIEF JUDGE CHENEY: Yeah. They're a handful of
16 pages. And so I'm trying to understand what this burden
17 objection is, Mr. Brigham.

18 MR. BRIGHAM: Well, there are a couple different
19 angles of it. If we're talking about going to collect --
20 so for these two processes that we produced and provided
21 information, let's call it 100, 150 different variations.

22 CHIEF JUDGE CHENEY: Yeah.

23 MR. BRIGHAM: And so the question is, is it
24 proportional to the needs of the investigation to go and
25 find and collect all of those? What is it really going to

1 tell Complainant? Versus, if we're all aiming to get a
2 representative product, we may look at 10, 15. Like, what
3 is really needed to determine whether what they're
4 interested in, again, let's say it's 10 steps, right? If
5 what they're interested in is consistent, then no one needs
6 to go collect documents and information about a hundred --
7 hundreds of different processes. So that's the issue.

8 MR. SMITH: And, your Honor, if I may add just
9 very quickly? This is Mr. Smith.

10 CHIEF JUDGE CHENEY: Yes, Mr. Smith.

11 MR. SMITH: And I think this goes back to the
12 earlier point that Mr. Brigham was trying to make. And
13 that is, a number of these patents are really specific to a
14 particular component. For example, chip sealants or
15 contact. And so the point of what proportionality in the
16 new amendments of 210.27(b) seem to strike right at the
17 heart of this, your Honor. And that's why we're proposing
18 the step-by-step, sort of iteration, if you will, in that,
19 do you really need to know the temperature? Do you really
20 need to know a lot of this information for 150 variants,
21 just in one process, when you're really just looking and,
22 and they haven't told us this, hey, for this process we're
23 looking for the chip seals of the contents.

24 And that was the kind of conversation that we're
25 continuing to have and wanted to focus that on, your Honor.

1 And I think that is a very important point. And
2 you hit it right on the head. It's a super broad
3 investigation. They don't need every process flow or every
4 recipe for every single step. They're only focused on
5 things that are relevant to the accused patents. And I
6 think that's a point that hasn't been -- that has come
7 forward today and I think that's a very important point.

8 But to your Honor's procedure, I think when they
9 take a look at these process flows, they may be --
10 hopefully we have this conversation and they say, hey,
11 Steve and Matt, we're only interested in these processes or
12 these types of steps in these processes and can you confirm
13 that they're the same for these 150? And maybe we can and
14 we can circuit this, your Honor.

15 But I wanted to add that context, because I
16 think it was lost a little bit. And your Honor is right,
17 they are accusing almost every category we have.

18 CHIEF JUDGE CHENEY: Okay. So the -- Mr.
19 Reiser, is there anything else that you need from me to
20 resolve the issue in your letter?

21 MR. REISER: Your Honor, I don't think so,
22 pending what we get on the 13th. I think what we have
23 paved the way for here today is very helpful and we're
24 grateful.

25 CHIEF JUDGE CHENEY: Okay. Great. I hope that

1 the next 30 days go better. And we'll just do it again in
2 another 30 days, if there are still issues that need to be
3 resolved.

4 Just so everyone is clear, the review computer
5 is going to go up on Monday. There's going to be -- you
6 are going to meet and confer about processes to be put on
7 that computer and both sides are going to take a look at
8 those processes. You are going to have a conversation
9 about other things that need to be done no later than July
10 20th.

11 And does someone know what day our next case
12 management conference is?

13 MR. SMITH: August 12th, your Honor.

14 CHIEF JUDGE CHENEY: And so if things are not
15 where they should be, then several days before August 12th
16 either side will let me know what needs to be done.

17 Thank you for your time today and for your
18 effort to move the investigation forward.

19 Let me just reiterate something. I think -- I'm
20 certain I said this at the preliminary conference. If you
21 have a question in the course of discovery about whether
22 your client should produce something you need only ask
23 yourself, does Judge Cheney need to see this document to
24 render a decision on the merits. And if I do, and the
25 other side has asked for it, you need to produce it. And

1 if it contains information that is not helpful to your
2 client and you don't want the judge to see it, then you
3 need to figure out something other than this litigation
4 because the course of this litigation is develop a record
5 of the material information I need to make a decision on
6 the merits of the investigation.

7 And I don't want to decide things by adverse
8 inferences or discovery sanctions. I need the documents
9 that will allow me to make a decision on the merits. And
10 both sides need to provide those documents. It's not
11 complicated. It's -- I understand your businesses are --
12 your businesses are complicated. My needs of this
13 investigation are not complicated. They are very straight
14 forward. I need to know the things that allow me to make a
15 decision on the merits. So work toward that end. I have
16 every confidence you're going to be able to make progress.

17 Thanks very much. And we are off the record.

18 MR. REISER: Thank you, Your Honor.

19 MR. SMITH: Thank you, Your Honor.

20 MR. BRIGHAM: Thank you, your Honor.

21 (Whereupon, at 4:18 p.m., the hearing was
22 concluded.)

23

24

25

1 CERTIFICATE OF REPORTER

2 TITLE: In The Matter Of: Certain Semiconductor Devices,
3 Products Containing Same and Components Thereof.

4 INVESTIGATION NO: 337-TA-1500
5 HEARING DATE: 7/8/26
6 LOCATION: Washington, DC - Remote
7 NATURE OF HEARING: CMC Hearing

8 I hereby certify that the foregoing/attached
9 transcript is a true, correct and complete record
10 of the above-referenced proceedings of the U.S.
11 International Trade Commission.
12 DATE: 7/8/26

13 SIGNED: Mark A. Jagan

14 Signature of the Contractor or the
15 Authorized Contractor's Representative

16 I hereby certify that I am not the Court Reporter
17 and that I have proofread the above-referenced
18 transcript of the proceedings of the U.S.
19 International Trade Commission, against the
20 aforementioned Court Reporter's notes and
21 recordings, for accuracy in transcription in the
22 spelling, hyphenation, punctuation and speaker
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